

Petitioner filed objections and prayed "that the Court reduce the request of Plaintiffs for attorney's fees." *Id.*, at 33. The court found the fees figure reasonable and granted fees and costs in the requested amount.

Petitioner took an appeal from the order awarding attorney's fees against her. She argued that, as a judicial officer, she was absolutely immune from an award of attorney's fees. The Court of Appeals reviewed the language and legislative history of § 1988. It concluded that a judicial officer is not immune from an award of attorney's fees in an action in which prospective relief properly is awarded against her. Since the court already had determined that judicial immunity did not extend to injunctive and declaratory relief under § 1983,<sup>3</sup> the court concluded that prospective relief properly had been awarded against petitioner. It therefore affirmed the award of attorney's fees. *Allen v. Burke*, 690 F. 2d 376 (1982).

## II

We granted certiorari in this case, 461 U. S. 904 (1983), to determine, as petitioner phrased the question, "[w]hether Judicial Immunity Bars the Award of Attorney's Fees Pursuant to 42 U. S. C. § 1988 Against a Member of the Judiciary Acting in his Judicial Capacity." See the initial leaf of the petition for certiorari. As the Court of Appeals recognized, the answer to that question depends in part on whether judicial immunity bars an award of injunctive relief under § 1983. The legislative history of § 1988 clearly indicates that Congress intended to provide for attorney's fees in cases where relief properly is granted against officials who are immune from damages awards. H. R. Rep. No. 94-1558, p. 9 (1976).<sup>4</sup> There is no indication, however, that Congress

<sup>3</sup>See *Timmerman v. Brown*, 528 F. 2d 811, 814 (1975), rev'd on other grounds *sub nom. Leeke v. Timmerman*, 454 U. S. 83 (1981).

<sup>4</sup>"[W]hile damages are theoretically available under the statutes covered by H. R. 15460, it should be observed that, in some cases, immunity doctrines and special defenses, available only to public officials, preclude or severely limit the damage remedy. Consequently awarding counsel fees